

STATE OF NEW YORK

3451--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 27, 2025

Introduced by M. of A. BRONSON, COLTON, ZINERMAN -- read once and referred to the Committee on Labor -- recommitted to the Committee on Labor in accordance with Assembly Rule 3, sec. 2 -- reported and referred to the Committee on Ways and Means -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the labor law, in relation to the establishment of a wage data clearinghouse

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The labor law is amended by adding a new section 45 to read as follows:

§ 45. Wage data clearinghouse. 1. The commissioner, subject to available appropriations and in consultation with the commissioner of education and the state workforce investment board, shall establish a wage data clearinghouse. The purpose of the wage data clearinghouse shall be to use existing unemployment insurance data as described in section five hundred thirty-seven of this chapter and other available labor, education and workforce development data to evaluate the long-term effectiveness of workforce development and education programs and to identify gaps in the availability of existing and proposed workforce development training to meet employment needs. In addition, the clearinghouse shall conduct any other research it identifies as contributing to increasing the attainment of long-term employment of residents of this state, especially those who are unemployed or underemployed.

2. The wage data clearinghouse shall be administered by an academic institution in the state of New York with proven expertise in analyzing labor data and shall be selected by the commissioner, in consultation with the commissioner of the education department and the state workforce investment board, through a request for proposals process. Criteria shall include, but not be limited to, the demonstrated ability of

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 the chosen institution to analyze unemployment insurance and wage
2 reporting data and to leverage and attract federal funds and non-govern-
3 mental funds. The commissioner is authorized to provide funding to a
4 selected academic institution for operating a wage data clearinghouse of
5 up to six hundred thousand dollars, subject to appropriation. Any
6 unused allocation may be made available in the subsequent fiscal year.

7 3. The department shall provide the wage data clearinghouse with all
8 state and federal unemployment insurance and wage and employment related
9 data it has available, including but not limited to unemployment insur-
10 ance data as described in section five hundred thirty-seven of this
11 chapter. All disclosure requirements specified in section five hundred
12 thirty-seven of this chapter shall apply to all wage data clearinghouse
13 employees working with the data.

14 4. A statewide wage data clearinghouse advisory board is hereby estab-
15 lished for the purpose of determining statewide objectives and the wage
16 data clearinghouse's research and evaluation priorities after consulta-
17 tion with the director of the wage data clearinghouse. The advisory
18 board shall appoint a director with expertise in large data systems and
19 data security with preference given to a candidate who has experience
20 with workforce development. Such director shall receive an annual salary
21 within amounts appropriated. (a) The advisory board shall consist of
22 twelve members, including: the chancellor of the state university of New
23 York, or such chancellor's designee; the commissioner of the state
24 education department, or such commissioner's designee; the commissioner
25 of the state department of labor, or the commissioner's designee; a
26 representative of superintendents of schools, appointed by the governor;
27 a representative of a district superintendents of schools, appointed by
28 the governor; a representative of community colleges, appointed by the
29 governor; and, six members of the public, including two appointed by the
30 speaker of the assembly, one appointed by the minority leader of the
31 assembly, two appointed by the president pro tempore of the senate, and
32 one appointed by the minority leader of the senate. The public members
33 of the advisory board shall have expertise in large data systems and
34 data security, workforce development programs, economic development,
35 business management and/or organized labor. (b) The members of the advi-
36 sory board shall receive no compensation for their services, but shall
37 be allowed their actual and necessary expenses incurred in the perform-
38 ance of their duties pursuant to this section, subject to the approval
39 of the department. (c) Advisory board members who represent state agen-
40 cies shall be appointed for terms of three years, and members who repre-
41 sent local governments shall serve terms of two years and all other
42 members shall serve terms of four years. Vacancies shall be filled in
43 the same manner as original appointments for the remainder of the unex-
44 pired term. (d) Advisory board members shall each be granted voting
45 rights and will together elect a chair whose designation shall be made
46 biannually. (e) The advisory board shall meet at such times and places
47 as may be determined by its chair. The advisory board shall meet at a
48 minimum of six times in the first year and a minimum of three times per
49 year thereafter. All meetings shall be open to the public pursuant to
50 article seven of the public officers law. A majority of the members of
51 such council shall constitute a quorum for the transaction of business.
52 (f) After consultation with the director, the advisory board shall
53 discuss and vote on research priorities and topics for the clearinghouse
54 that do not duplicate any research or statistics the department under-
55 takes and that focus on the need of the users of the analysis, which are

1 state and local policy makers, educational entities, workforce develop-
2 ment providers, businesses, and economic development administrators.

3 5. The wage data clearinghouse shall use unemployment insurance data
4 as described in section five hundred thirty-seven of this chapter
5 provided by the department and any other data sets including data
6 provided by state, federal or local agencies it deems appropriate. The
7 clearinghouse shall keep private and safeguard any personally identifi-
8 able information it obtains and shall not release such information to
9 any other party, and shall use any data it obtains solely for the
10 purpose of furthering the effectiveness and efficiency of workforce
11 development efforts as provided in this section.

12 6. The wage data clearinghouse shall release reports and aggregated
13 data to the department, which shall be posted on the department's
14 website as well as on any website maintained by the clearinghouse.

15 7. One year after selection of the academic institution that will
16 serve as the clearinghouse, the department shall submit to the director
17 of the budget, the chair of the senate finance committee, the chair of
18 the assembly ways and means committee, the chairs of senate and assembly
19 labor committees, the speaker of the assembly, and the president pro
20 tempore of the senate, an evaluation of this program prepared by the
21 department. Such evaluation shall be submitted every four years there-
22 after.

23 § 2. This act shall take effect immediately.